

SENATE No. 586

The Commonwealth of Massachusetts

PRESENTED BY:

James B. Eldridge

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to maintaining adequate water supplies through effective drought management.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/11/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>2/27/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>2/27/2025</i>
<i>Christopher Richard Flanagan</i>	<i>1st Barnstable</i>	<i>2/27/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>4/18/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>4/18/2025</i>
<i>Joan B. Lovely</i>	<i>Second Essex</i>	<i>4/18/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>5/28/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>5/28/2025</i>

SENATE No. 586

By Mr. Eldridge, a petition (accompanied by bill, Senate, No. 586) of James B. Eldridge, Joanne M. Comerford, Jason M. Lewis, John F. Keenan and others for legislation to maintain adequate water supplies through effective drought management. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 475 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to maintaining adequate water supplies through effective drought management.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 21A of the General Laws is hereby amended by inserting after section 2A the
2 following section:-

3 Section 2B. (a) There shall be within the office a drought management task force. The
4 task force shall consist of: the secretary or a designee, who shall serve as co-chair; the director of
5 the Massachusetts emergency management agency or a designee, who shall serve as co-chair; the
6 commissioner of agricultural resources or a designee; the commissioner of conservation and
7 recreation or a designee; the commissioner of environmental protection or a designee; the state
8 fire marshal or a designee; the commissioner of fish and game or a designee; the commissioner
9 of public health or a designee; the commissioner of public utilities or a designee; the executive
10 director of the Massachusetts Water Resources Authority or a designee; the executive director of

the Massachusetts Association of Health Boards, Inc.; the executive director of the Massachusetts Rivers Alliance, Inc., or a designee; the executive director of the Massachusetts Water Works Association Inc.; and the executive director of the Water Supply Citizens advisory committee to the Massachusetts Water Resources Authority. The co-chairs may invite officials from federal agencies to provide scientific and technical input and shall have joint responsibility for coordinating the task force. The task force shall meet not less than monthly when drought conditions exist. The task force shall be staffed by a director appointed by the secretary.

(b) The task force shall: (i) assist in collecting and assessing technical information; (ii) facilitate coordination and communication among task force members, agencies and the public; and (iii) provide recommendations to the secretary, the secretary of public safety and security and the governor on the existing drought level and any proposed responses to such drought level. The task force shall also make recommendations for the end of a drought or the reduction of the drought level or for the commencement or cessation of a drought declaration.

(c) The task force shall maintain and periodically update a statewide drought management plan that addresses drought preparedness and response protocol to drought conditions and protects public health, public safety and the environment. The task force may update the statewide drought management plan at any time; provided, however, that the plan shall be reviewed not less than every 5 years and updated not less than every 10 years; provided further, that the drought management plan shall be approved by the water resources commission.

(d) The task force may create and maintain a map that shall seek to create drought regions consistent with watersheds.

32 (e) The secretary may order water conservation measures, including limits on
33 nonessential outdoor water use, based on the severity of drought in drought regions to protect
34 public health, safety or the environment. Such water conservation measures shall apply to all
35 water users within a drought region unless otherwise determined by the secretary with prior
36 notice to the task force.

37 (f) Notwithstanding section 27C of chapter 29 or any other general or special law,
38 ordinance, by-law, rule or regulation to the contrary, cities and towns shall enforce water
39 conservation restrictions issued by the secretary to the fullest extent permitted by law.